DEALER TITLE AFFIDAVIT

State Form 46633 (R6 / 7-18)

INDIANA SECRETARY OF STATE
AUTO DEALER SERVICES DIVISION
302 West Washington Street, Room E-111
Indianapolis, IN 46204
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Dealers@sos.in.gov

INSTRUCTIONS:
1. *Complete in blue or black ink or print completed form.*
2. *In addition to other statutory requirements, this affidavit must be completed by the dealer and given to the purchaser of a vehicle when the certificate of title cannot be delivered at the time of sale.*
3. *The original affidavit must be given to the purchaser. A copy of the affidavit must be kept with the deal jacket.*

STATE OF _____)
) SS:
COUNTY OF _____)

I affirm under the penalties for perjury that all of the following are true:

(1) That I am a dealer licensed under IC 9-32.

(2) That I cannot deliver or transmit a valid certificate of title to the retail purchaser of the motor vehicle or watercraft described in paragraph (3) at the time of sale of the motor vehicle or watercraft to the retail purchaser.
The identity of the previous seller or transferor is _____.
Name of previous seller / transferor

There ☐ is ☐ is not a lien on the motor vehicle or watercraft. I am required to satisfy any obligation secured by this motor vehicle or watercraft not later than _____.
mm/dd/yyyy

I expect to deliver or transmit a valid and transferable certificate of title not later than

_____ from the State of _____ to the purchaser.
mm/dd/yyyy

(3) That I will undertake reasonable commercial efforts to produce the valid certificate of title.
The vehicle identification number or hull identification number is _____.

Name of dealer	
Signed by	Date signed *(mm/dd/yyyy)*

CUSTOMER ACKNOWLEDGES RECEIPTOF A COPY OF THIS AFFIDAVIT.

Signature of customer	Date signed *(mm/dd/yyyy)*

NOTICE TO THE CUSTOMER

If you do not receive a valid certificate of title within thirty-one (31) days after the date of sale, you have the right to return the motor vehicle or watercraft to the dealer ten (10) days after giving the dealer written notice demanding delivery or transmission of a valid certificate of title and after the dealer's failure to deliver or transmit a valid certificate of title within that ten (10) day period. Upon return of the motor vehicle or watercraft to the dealer in the same or similar condition as when it was delivered to you, the dealer shall pay you the purchase price plus sales taxes, finance expenses, insurance expenses, and any other amount that you paid to the dealer.

If a lien is present on the previous owner's certificate of title, it is the responsibility of the third party lienholder to timely deliver or transmit the certificate of title in the third party's possession to the dealer not more than ten (10) business days after there is no obligation secured by the motor vehicle or watercraft. If the dealer's inability to deliver or transmit a valid certificate of title to you within the above-described ten (10) day period results from the acts or omissions of a third party that has failed to timely deliver or transmit the certificate of title in the third party's possession to the dealer, the dealer may be entitled to claim against the third party the damages allowed by law.